



CHAPTER cxxv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Leith Harbour and Docks. A.D. 1925.
[10th December 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Leith Harbour and Docks Order Confirmation Act 1925. Short title.

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S C H E D U L E.

LEITH HARBOUR AND DOCKS.

Provisional Order to authorise The Commissioners for the Harbour and Docks of Leith to construct new works and for other purposes.

WHEREAS by the Leith Harbour and Docks Act 1875 the Acts then in force relating to the harbour and docks of Leith were consolidated and amended and the constitution of the Commissioners was altered and their undertaking was transferred to and vested in new Commissioners incorporated under that Act by the name of "The Commissioners for the Harbour and Docks of Leith" (hereinafter referred to as "the Commissioners") :

And whereas by the Leith Harbour and Docks Acts 1875 to 1924 the Commissioners were authorised to construct certain additional works and to borrow money for the purpose and further powers with reference to their undertaking were conferred upon them :

And whereas it is expedient that for the purpose of affording further accommodation at the harbour and docks the works in this Order described should be authorised in lieu of the works by this Order authorised to be abandoned :

And whereas it is expedient that the other powers in this Order contained should be conferred on the Commissioners :

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk for the county of Midlothian and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 : A.D. 1925.
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Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PART I.

PRELIMINARY.

1. This Order may be cited as the Leith Harbour and Docks Order 1925 and this Order and the Leith Harbour and Docks Acts 1875 to 1924 may be cited together as the Leith Harbour and Docks Acts 1875 to 1925. Short title
and
citation.

2. This Order is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—New works.

Part III.—Abandonment.

Part IV.—Financial.

Part V.—Miscellaneous.

Order
divided
into Parts.

3. The Lands Clauses Acts are incorporated with this Order. Incor-
poration
of Acts.

4. The Harbours Docks and Piers Clauses Act 1847 excepting the sections thereof with respect to lifeboats with respect to keeping a tide and weather gauge (unless the Commissioners shall be required by the Board of Trade to provide and maintain a lifeboat and tide and weather gauge) with respect to the accounts to be kept of the rates and of the vessels in respect of which they are payable and with respect to the police of the harbour dock and pier and excepting sections 12 25 and 26 of that Act is except where expressly varied by this Order incorporated with and forms part of this Order Provided that the following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say) :— Partial
incorpora-
tion of
Harbours
Docks and
Piers
Clauses
Act.

The expressions “ packet boat ” and “ Post Office packet ” mean respectively a vessel employed

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by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression "Post Office bag of letters" means a mail bag as defined by the same Act:

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Order shall extend to exempt from rates or duties any such vessel as aforesaid if such vessel also conveys passengers or goods for hire.

Interpreta-
tion.

5. In this Order the several words and expressions to which meanings are assigned by the Harbour Acts and by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

In this Order the expression :—

"The Commissioners" means The Commissioners for the Harbour and Docks of Leith;

"The Act of 1913" means the Leith Harbour and Docks Act 1913;

"City" means the city and royal burgh of Edinburgh;

"Corporation" means the lord provost magistrates and council of the City;

"The Harbour Acts" means the Leith Harbour and Docks Acts 1875 to 1924;

"Port of Leith" means and includes the Port and Harbour of Leith and the harbour docks quays piers and whole other works and property included in the undertaking defined in and vested in the Commissioners by the Harbour Acts and this Order and all future additions thereto and extensions thereof.

PART II.

NEW WORKS.

Description
of works.

6. Subject to the provisions of this Order the Commissioners may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described with all proper

approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference as may be required for that purpose The works hereinafter referred to and authorised by this Order are :—

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- (1) A reclamation wall or embankment on the East Sands of Leith commencing at or near a point on the existing sea wall or reclamation embankment on the northern side of the Imperial Dock five hundred and twenty feet or thereabouts measuring in a northerly direction from the north-east corner of the Imperial Dock thence extending in a north-easterly direction for a distance of one thousand three hundred and thirty feet or thereabouts thence extending in a south-easterly direction for a distance of two thousand three hundred and fifty feet or thereabouts and thence extending in a southerly direction for a distance of two thousand four hundred feet or thereabouts and terminating at or near a point on the aforesaid sea wall or reclamation embankment eastward of the Edinburgh Dock one thousand five hundred and seventy feet or thereabouts measuring in an easterly direction from the north-east corner of the Edinburgh Dock and the filling up of all or some part of the area within the limits embraced by such reclamation wall or embankment and the aforesaid sea wall or reclamation embankment:
- (2) A wet dock on the East Sands of Leith within the area to be enclosed by the reclamation wall or embankment before described the said wet dock commencing at a point four hundred and eighty feet or thereabouts measuring in a south-easterly direction from the south-east corner of the Imperial Dock and three hundred and ninety feet or thereabouts measuring in a northerly direction from the north-west corner of the Edinburgh Dock thence proceeding in a straight line in a south-easterly direction for a distance of one thousand eight hundred and fifty feet or thereabouts to a point seven

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hundred and seventy feet or thereabouts measuring from the north-east corner of the Edinburgh Dock thence proceeding in a straight line in a north-easterly direction for a distance of two hundred feet or thereabouts thence proceeding in a straight line in a north-westerly direction for a distance of one thousand six hundred feet or thereabouts to a point six hundred and seventy feet or thereabouts measuring in a north-easterly direction from the point of commencement and thence proceeding partly in straight lines and partly in a curve to the said point of commencement and there terminating the said wet dock having a water-way entrance passage from a point near the north-east corner of the Imperial Dock four hundred and fifty feet or thereabouts in length and ninety feet or thereabouts in width and having an opening bridge across such passage :

- (3) A diversion of the three foot nine inch main drainage sewer pipe of the corporation commencing at a point on the said pipe at the foot of the existing sea wall or reclamation embankment on the northern side of the Edinburgh Dock two hundred and forty feet or thereabouts north-eastward of the north-east corner of the Edinburgh Dock and terminating at or about low water mark alongside the outfall of the five foot sewer of the corporation :

All of which works will be situate in or adjoin the county of Midlothian the city and the city parish of Edinburgh.

Power to
stop up
roads &c.

7. The Commissioners may stop up temporarily during the construction of the works by this Order authorised and permanently at any time after the completion of the reclamation wall or embankment part of the work firstly described in the section of this Order of which the marginal note is "Description of works"—

- (a) That portion of the road known as the Esplanade commencing at the west side of the northern end of the road known as Albert Road and terminating at a point one thousand one hundred and sixty feet or thereabouts measured along the

said Esplanade in a south-easterly direction from the point of commencement; A.D. 1925.

- (b) That portion of the Esplanade commencing at the point of termination of the portion of the Esplanade described in paragraph (a) of this section and terminating at the point where the Esplanade meets the Railway No. 2 authorised by and constructed under the powers of the North British Railway Act 1913 and the footway constructed under the provisions of subsection (1) (c) of section 27 (For protection of Leith Corporation) of the said Railway Act or so much of that portion of the Esplanade as the Commissioners shall from time to time deem necessary;
- (c) That portion of the said Albert Road on the southern side of the Edinburgh Dock commencing at the western side of the northern end of Bath Road and terminating at the western side of the northern end of Constitution Place; and
- (d) That portion of Constitution Place extending for thirty feet or thereabouts southward from the said Albert Road;

and thereupon all rights of way over the portions of roads so to be stopped up shall be extinguished:

Provided that the Commissioners shall so long as required by the corporation so to do and to the reasonable satisfaction of the corporation provide or secure and maintain for the use of the public access from Seafield Road to the sea and along the sea front by the existing means of access or by the substituted means of access following:—

- (i) A footpath commencing at the termination of that portion of the Esplanade described in and authorised to be stopped up under paragraph (a) of this section and terminating by a junction with the said footway constructed under the authority of the said section 27 of the said Railway Act whether the said footway shall continue to be maintained upon its present lines or levels or shall be diverted to other lines or levels The said footpath shall be

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situated upon the seaward side of the Esplanade or to the seaward thereof and shall be not less than seven feet six inches in width and have a good hard surface and if the said footpath shall be constructed to seaward of the Esplanade it shall also have on the seaward side thereof a parapet not exceeding four feet six inches in height;

- (ii) A slipway for access to the sands in substitution for the existing slipway part of Work "First" described in and authorised by and constructed under the powers of section 41 (Description of works) of the Leith Harbour and Docks Act 1875;
- (iii) A continuation of the access for cart and foot traffic across the said Railway No. 2 as provided in subsection (1) (b) of the said section 27 of the said Railway Act over any rails that may be laid down upon the seaward side of the said Railway No. 2; and
- (iv) An extension of the footbridge provided under subsection (1) (a) of the said section 27 of the said Railway Act to afford access from Seafield Road to the said footpath and to the said footway and to the said slipway;

and so soon as the Commissioners have provided or secured such substituted means of access all rights of way over the portions of the existing means of access for which the said substituted means of access are in substitution shall be extinguished.

For protec-
tion of
corporation
of Edin-
burgh.

8. The following provisions for the protection of the corporation shall unless otherwise agreed upon in writing between the Commissioners and the corporation apply and have effect (that is to say):—

- (1) The Commissioners shall construct the works by this Order authorised or any part thereof so as to secure during the construction of these works to the reasonable satisfaction of the corporation that (a) the sewer constructed under the provisions of the Edinburgh and Leith Sewerage Act 1864 (hereinafter in this section referred to as "the 1864 sewer") and (b) the sewer constructed under the provisions of the Water

of Leith Purification and Sewerage Act 1889 A.D. 1925.
(hereinafter in this section referred to as
"the 1889 sewer") shall except as in this
section otherwise provided continue in operation
as fully and freely and unimpaired as if the Act
confirming this Order had not been passed:

- (2) When constructing the works by this Order authorised the Commissioners shall stop up and discontinue the 1864 sewer so far as situated within the area to be enclosed by the reclamation wall or embankment by this Order authorised (hereinafter in this section referred to as "the reclamation wall or embankment") and shall in lieu thereof and prior to the same being so stopped up and discontinued construct the diversion of sewer by this Order authorised and a storm water overflow chamber on that sewer at or near the point where the said sewer is carried underneath the reclamation wall or embankment (the said diversion of sewer and storm water overflow chamber being hereinafter in this section collectively referred to as "the diverted sewer") which diverted sewer shall be of not less carrying capacity than the 1864 sewer and shall be constructed on the line of the said diversion of sewer as shown on the deposited plans or on such other line as may be agreed on between the Commissioners and the corporation:
- (3) When constructing the works by this Order authorised the Commissioners shall remove that portion of the 1889 sewer which extends from the Esplanade northwards to the existing outfall or discharge thereof into the sea and the existing storm water overflow chamber in connection therewith and shall in lieu thereof construct a new or substitute sewer and a new storm water overflow chamber on that sewer at or near the point where the said sewer is carried underneath the reclamation wall or embankment (the said new or substitute sewer and new storm water overflow chamber being hereinafter in this section referred to as "the substitute sewer") which substitute sewer shall be of not less carrying capacity than the portion of the 1889

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sewer situated to the south of the existing storm water overflow chamber and shall be constructed on the line of the existing sewer or on such other line as may be agreed on between the Commissioners and the corporation:

- (4) The Commissioners shall provide such manholes for affording access to the diverted sewer and the substitute sewer as the corporation may reasonably require:
- (5) The Commissioners shall carry the diverted sewer and the substitute sewer northwards into the sea so that the outfalls or discharges thereof shall be one hundred yards seawards from the northern line of the reclamation wall or embankment or of a line in prolongation thereof south-eastwards or such less distance as shall be agreed in writing by the corporation. Provided that the corporation shall not be bound to submit any question under this subsection to arbitration:
- (6) In constructing the works by this Order authorised the Commissioners shall make such provision as the corporation may reasonably require for the temporary and permanent protection of the diverted sewer and the substitute sewer and the free and uninterrupted use thereof and for proper and convenient access to the same or any part thereof and the Commissioners shall not construct any building over the diverted sewer or over the substitute sewer without previous written notice being given to the corporation and the Commissioners shall in constructing any such building execute at their own expense such works as the corporation may reasonably deem necessary for the protection of the diverted sewer or of the substitute sewer:
- (7) At least forty-two days before commencing the construction of the diverted sewer or of the substitute sewer inclusive in each case of the seawards extension thereof in this section provided (which works are hereinafter in this section referred to as "the said works") the Commissioners shall submit to the corporation

through the town clerk plans sections working drawings and specifications thereof showing the lines and levels of the said works and the mode of constructing the same for the reasonable approval of the corporation and if the corporation do not within forty-two days after the receipt of the said plans sections working drawings and specifications intimate in writing to the Commissioners their approval or disapproval of the same the Commissioners may proceed to carry out the said works in accordance therewith but if the corporation shall disapprove the said plans sections working drawings and specifications or any of them the same shall failing adjustment thereof to the reasonable satisfaction of the corporation be referred to arbitration as hereinafter in this section provided:

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- (8) The said works shall be constructed carried on and completed by the Commissioners in strict conformity with the said plans sections working drawings and specifications at the sole risk and cost of the Commissioners under the supervision (if given) and to the reasonable satisfaction of the corporation:
- (9) The Commissioners shall pay to the corporation the reasonable costs charges and expenses which the corporation may incur in connection with the construction of the said works including any reasonable expenses which the corporation may incur for such supervision:
- (10) The said works shall on completion thereof vest in the corporation in the same way and to the same effect as if the same had been expressly authorised by the Acts relating to the water of Leith purification and sewerage undertaking of the corporation and had been constructed under the provisions of these Acts provided that for the period of twelve months from and after the date of such completion the Commissioners shall to the reasonable satisfaction of the corporation make good any defects in and maintain the said works and in the event of the said works in so far as

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the same are situated to seaward of the reclamation wall or embankment being at any time damaged by storm or tempest or stress of exceptional weather or by any vessel or sea craft or wreckage or by any other sea risk the Commissioners shall free and relieve the corporation of the cost of making good such damage:

- (11) The corporation shall at all reasonable times and in a reasonable manner have free access for their engineers inspectors workmen and others to the lands and property of the Commissioners for the purposes of inspection and of carrying out such works (including the haulage or transport of material) as they may from time to time deem necessary for the repair enlargement or renewal of the said works and also (a) for the construction of such new sewers and relative works as may be required from time to time and (b) for the construction repair enlargement or renewal and use of such screens detritus tanks and other relative works as may be necessary for the purpose of screening or otherwise treating or dealing with the sewage carried by the said works before it is discharged into the sea and (c) for the removal of sludge or other material from the said screens detritus tanks or other relative works Provided that any works referred to in paragraph (a) of this subsection shall only be constructed by the corporation in accordance mutatis mutandis with the provisions of section 12 (For protection of Commissioners for Harbour and Docks of Leith) of the Water of Leith Purification and Sewerage Order 1908 and any servitude on or under the lands and property of the Commissioners required for such works shall mutatis mutandis be acquired by the corporation under the provisions of the said section 12:
- (12) The corporation shall for the purposes of the construction maintenance and use of the screens detritus tanks and other relative works referred to in the immediately preceding subsection of this section be entitled to occupy and use a

piece or pieces of land not exceeding in the aggregate two acres in extent forming part of the area reclaimed by the construction of the reclamation wall or embankment and the position of the said piece or pieces of land shall be determined by agreement or failing agreement by arbitration as hereinafter in this section provided and the corporation shall be entitled to obtain occupation of the said piece or pieces of land for the purposes aforesaid on giving six months' prior intimation in writing to the Commissioners. Provided that the said piece or pieces of land so to be occupied shall adjoin the reclamation wall or embankment and shall remain the property of the Commissioners and that the corporation shall in respect of such occupation make payment to the Commissioners of ten shillings at the term of Whitsunday in each year so long as the corporation shall remain in occupation of any part thereof. Nothing in this subsection contained shall be construed to authorise the corporation so to construct any works upon the said piece or pieces of land or so to conduct any operation on or in such works as to prevent or unreasonably interfere with the reasonable enjoyment by the Commissioners and the public of the undertaking of the harbour and docks of Leith other than the said piece or pieces of land as a public port and harbour:

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- (13) As a contribution towards the cost of the said works the corporation shall within one month after the date of the completion of the said works pay to the Commissioners the sum of thirty-five thousand pounds and for the purposes of this subsection the said works shall be deemed to be completed at a date to be certified by the engineer to the corporation which certificate shall be granted without undue delay. Within three months of the date of the passing of the Act confirming this Order the Commissioners shall produce to the Commissioners of Inland Revenue a King's Printers' copy of the Act duly impressed with ad valorem Bond Duty on the sum of 35,000*l.* which sum of 35,000*l.* the corpora-

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tion is in terms of this section taken bound to pay and in default of such production the duty 43*l.* 15*s.* with interest thereon at the rate of five per centum per annum from the date of the passing of the Act confirming this Order shall be a debt due to His Majesty from the Commissioners and recoverable as such :

- (14) Except as by this Order otherwise expressly provided nothing in this Order contained shall prejudice limit restrict affect or extend any of the powers rights or authorities of the corporation for preserving and protecting their sewers or other works and for securing the free and uninterrupted use thereof and the discharge of sewage therefrom :
- (15) Notwithstanding anything in this Order contained or shown upon the deposited plans and sections the Commissioners shall not under the powers of this Order interfere with enter upon take or use compulsorily the properties numbered 11 11a 11b and 12 on the said plans except so far as may be necessary for the construction of the said works :
- (16) The Commissioners shall provide and maintain a footpath with a good hard surface of a width of not less than ten feet along the top and on the seaward side of the reclamation wall or embankment throughout its entire length except at any point or points where the reclamation wall or embankment shall be otherwise occupied under the provisions of the section of this Order of which the marginal note is " Agreement with War Department " at which point or points the said footpath shall be diverted The said footpath shall on the seaward side be protected by a parapet not exceeding four feet six inches in height and on the landward side so long as required by the corporation by a sufficient iron railing with double bars and the public shall have the right to use the said footpath subject to the provisions of the byelaws and regulations of the Commissioners :
- (17) The footpath referred to in the immediately preceding subsection of this section shall be

connected with the footpath along the seaward side of the existing road known as the Esplanade and if the Commissioners deem it necessary to construct a door or gate at the junction of the footpath first mentioned in this subsection with the Esplanade such door or gate shall remain open at such times as are provided by the byelaws and regulations of the Commissioners :

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- (18) The Commissioners shall construct and maintain such steps or slipways from the reclamation wall or embankment to the sands at not less than two points thereon as may be agreed between the Commissioners and the corporation :
- (19) Any question or difference which may arise between the Commissioners and the corporation under this section shall be referred to an arbiter to be mutually agreed upon or failing agreement to be appointed by the sheriff of the Lothians and Peebles on the application of either party.

9. The following provisions for the protection of the London and North Eastern Railway Company (hereinafter in this section called "the company") shall unless otherwise agreed in writing between the company and the Commissioners have effect (that is to say) :—

For protec-
tion of
London and
North
Eastern
Railway
Company.

- (1) Notwithstanding anything in this Order contained or shown on the deposited plans and sections the Commissioners shall not under the powers of this Order without the previous consent in writing of the company enter upon take use or in any way alter or interfere either temporarily or permanently with any railways sidings land property or other works belonging to the company or in which the company are interested :
- (2) In constructing the works authorised by this Order the Commissioners shall alter renew lengthen or reconstruct any drains sewers or lines of pipes for conveying surface drainage or sewage from the property of the company which may be interfered with or affected by the said works as such alteration renewal lengthening or reconstruction shall in the reasonable discretion of the company be considered

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necessary for adequately conveying the said drainage or sewage to the sea and shall construct such convenient and proper outfalls in connection with the said drains sewers or lines of pipes as the company may reasonably require :

- (3) Before commencing any works or operations under the powers conferred on them by this Order the Commissioners shall submit to the company so much of the plans sections working drawings and specifications thereof as may affect the land or property belonging to the company or the drainage or sewerage thereof showing the manner in which the works or operations in connection with the alteration renewal lengthening or reconstruction of the drains sewers or lines of pipes and the construction of outfalls in connection therewith are proposed to be carried out and the mode of execution thereof for the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless they signify in writing their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications :
- (4) All the works or operations referred to in subsection (3) of this section in so far as affecting the land and property of the company and the drainage and sewerage thereof shall be constructed carried on and completed with due despatch by the Commissioners in strict conformity with the said plans sections working drawings and specifications so approved at the sole risk and cost of the Commissioners and to the reasonable satisfaction and under the superintendence (if given) of the company and all such works shall be maintained repaired or renewed by the Commissioners in all time coming at their sole risk and cost and to the reasonable satisfaction and under the superintendence (if given) of the company :
- (5) Nothing contained in this section shall prejudice or affect the provisions of section 28 (For protection of Leith Dock Commissioners) of the North British Railway Act 1913 in so far as

these are applicable to the works or property of the company : A.D. 1925.

- (6) Any difference arising between the Commissioners and the company under this section shall be determined by an arbiter to be appointed on the application of either the Commissioners or the company by the President of the Institution of Civil Engineers.

10. And whereas in the construction of the works hereby authorised or otherwise in the exercise of the powers of this Order it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto. Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the First Schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the tribunal to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Commissioners the portions only of the premises so required without the Commissioners being obliged or compellable to purchase the whole or any greater portion thereof the Commissioners paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may be required to sell parts only of certain lands and buildings.

11. The works by this Order authorised and the areas proposed to be enclosed or embraced within such works and the lands to be acquired and the lands to be filled up or reclaimed under the powers of this Order shall for all purposes be deemed to have been authorised enclosed or embraced acquired filled up or reclaimed by or under the powers of the Act of 1913 and shall be in substitution for the works firstly and secondly described in section 7 (Description of works) of the Act of 1913 abandoned under the powers of this Order.

Works to be in substitution for works abandoned.

12. Subject to the provisions of this Order the works by this Order authorised and the areas proposed

Works to be deemed to be

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 authorised
 by Harbour
 Acts and
 vested in
 Commis-
 sioners.

to be enclosed or embraced within such works and the lands to be acquired and the lands to be filled up or reclaimed under the powers of this Order shall if and in so far as any part or parts thereof are not already vested in the Commissioners be deemed for all purposes including rating to be part of the works authorised by the Harbour Acts and be deemed to be vested in the Commissioners by their titles to the Port of Leith and by the Harbour Acts and shall be deemed to be part of the Port of Leith and the whole powers rights and authorities of the Commissioners shall apply to and may be exercised therein and with respect thereto as fully and freely in all respects as in other parts of the Port of Leith.

Agreement
 with War
 Depart-
 ment.

13.—(1) Section 23 (Commissioners to set apart a portion of reclaimed land for War Department) of the Leith Harbour and Docks Act 1892 and section 13 (Land for War Department) of the Act of 1913 and the reference to the said section 13 in subsection (1) of section 18 (Power to make subsidiary works) of the Act of 1913 are hereby repealed.

(2) The agreement between the Commissioners and His Majesty's Principal Secretary of State for the War Department set forth in the Second Schedule to this Order is hereby confirmed and made binding on the parties thereto.

Period for
 acquisition
 of lands.

14. The powers of the Commissioners for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of five years from the date of the passing of the Act confirming this Order.

PART III.

ABANDONMENT.

Abandon-
 ment of
 works
 authorised
 by Act
 of 1913.

15. The Commissioners shall abandon the construction of the reclamation wall or embankment firstly described in and the extension of the Imperial Dock secondly described in and authorised by section 7 (Description of works) of the Act of 1913.

Compensa-
 tion for
 damage to
 land by
 entry &c.
 for works
 abandoned.

16. The abandonment of works by the Commissioners under the authority of this Order shall not prejudice or affect the right of the owner or occupier of land to receive compensation for any damage occasioned by the entry of the Commissioners on such land for the purpose of surveying and taking levels or probing or boring to

ascertain the nature of the soil or setting out the line of the work and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Commissioners to receive compensation from the Commissioners for such temporary occupation or for any loss damage or injury which has been sustained by such owner by reason thereof. A.D. 1925.
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17. Where before the date of the passing of the Act confirming this Order any contract has been entered into or notice given by the Commissioners for the purchasing of any land for the purposes of or in relation to any portions of the works authorised to be abandoned by this Order the Commissioners shall be discharged from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Commissioners to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act 1919 for determining the amount and application of compensation for lands taken under the provisions of the Lands Clauses Acts. Compensation to be made in respect of works abandoned.

PART IV.

FINANCIAL.

18.—(1) The Commissioners may apply towards the cost of the works by this Order authorised or any portion thereof the whole or any part of the moneys authorised to be borrowed under the Harbour Acts (other than any moneys applied or to be applied as provided by subsection (a) of section 30 (Application of money borrowed) of the Leith Harbour and Docks Order 1919) and any moneys in their hands and the revenue to be received during the execution of the said works if any remaining after applying such revenue to the purposes to which such revenue is preferably applicable under the provisions of the Harbour Acts. Application of borrowed money.

(2) Any money borrowed under the authority of the Harbour Acts for the construction of the works firstly

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A.D. 1925. — and secondly described in section 7 (Description of works) of the Act of 1913 or any part of such works which will be incorporated with and form part of the works by this Order authorised shall be deemed to have been borrowed for the purposes of the works by this Order authorised.

(3) Section 23 (Postponement of payments to sinking fund for other works) of the Leith Harbour and Docks Order 1924 shall apply to money borrowed for the construction of the work firstly described in the section of this Order of which the marginal note is "Description of works" instead of for the construction of the work firstly described in section 7 (Description of works) of the Act of 1913 authorised to be abandoned by this Order.

PART V.

MISCELLANEOUS.

Power to make agreements for purposes of Order.

19. The Commissioners may from time to time make and carry into effect agreements with any Government department any local authority and any railway or other company or other person with reference to the carrying out of any purposes of this Order not specially provided for.

New works to be in city parish of Edinburgh.

20. The works by this Order authorised to be constructed and the areas to be enclosed or embraced within such works shall be deemed to be within the city and the city parish of Edinburgh.

Provisions of Harbour Acts and byelaws to remain in force.

21.—(1) Section 64 (Provisions of Harbour Acts and bye-laws to remain in force) of the Act of 1913 and the reference to that section in Schedule G to the Leith Harbour and Docks Order 1919 are hereby repealed.

(2) The provisions of the Harbour Acts so far as not expressly repealed amended varied or altered by this Order and all bye-laws and regulations made by the Commissioners under those Acts or any of them shall remain in full force and be applicable to the works authorised by the Act of 1913 the Leith Harbour and Docks Order 1919 and this Order.

Annual account to be sent to Ministry of Transport.

22.—(1) The Commissioners shall on or before the thirty-first day of August in each year send to the Ministry of Transport a copy of the abstract of their annual accounts printed as required by section 102

[15 & 16 GEO. 5.] *Leith Harbour and Docks Order Confirmation Act, 1925.* [Ch. cxxv.]

(Abstract of accounts to be printed) of the Leith Harbour and Docks Act 1875 as amended by section 29 (Annual accounts of Commissioners and interpretations) of the Leith Harbour and Docks Act 1899. A.D. 1925.
—

(2) The Commissioners shall be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) Section 34 (Annual accounts to be sent to Board of Trade) of the Leith Harbour and Docks Order 1919 is hereby repealed.

23. The sections of the Act of 1913 which are enumerated and referred to in the Third Schedule to this Order (except so far as the same or any part or parts thereof are expressly repealed amended or varied by this Order) are incorporated with and form part of this Order as fully and effectually to all intents and purposes as if those sections had been re-enacted *mutatis mutandis* in this Order and section 29 (Compensation for damage to salmon fishings) of the Act of 1913 shall be read and have effect as if the expression "the Commissioners of Crown Lands" were inserted therein instead of the expression "the Commissioners of Woods." Incorporation of certain sections of Act of 1913.

24. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Commissioners to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose. Crown rights.

25. All costs charges and expenses of and incident to the preparing for obtaining passing and confirming of this Order or otherwise in relation thereto shall be paid by the Commissioners out of the revenues of their undertaking. Costs of Order.

[Ch. cxxv.] *Leith Harbour and* [15 & 16 GEO. 5.]
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A.D. 1925. The SCHEDULES referred to in the foregoing Order.

FIRST SCHEDULE.

Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain lands and buildings."

Parish.	County.	Number on deposited plan.
City parish of Edinburgh -	Midlothian	2 23 24 25 26.

SECOND SCHEDULE.

Referred to in the section of this Order of which the marginal note is "Agreement with War Department."

AGREEMENT between HIS MAJESTY'S PRINCIPAL SECRETARY OF STATE FOR THE WAR DEPARTMENT (hereinafter called "the First Party") of the first part and THE COMMISSIONERS FOR THE HARBOUR AND DOCKS OF LEITH (hereinafter called "the Second Parties") of the second part.

WHEREAS the Second Parties have made or are about to make an application to His Majesty's Secretary for Scotland under the Private Legislation Procedure (Scotland) Act 1899 for an Order (hereinafter called "the Order") for power to abandon certain works authorised by the Leith Harbour and Docks Acts 1875 to 1924 and for authority to construct other harbour or dock works of a like nature and in a like position and for other purposes:

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A.D. 1925.
—

And whereas by section 23 (Commissioners to set apart a portion of reclaimed land for War Department) of the Leith Harbour and Docks Act 1892 and section 13 (Land for War Department) of the Leith Harbour and Docks Act 1913 certain reciprocal rights and obligations were conferred or imposed upon the said parties with reference to the setting apart by the Second Parties of a space or a substituted space on the dock and harbour works constructed by the Second Parties as defined in these sections which space should be occupied by the First Party for the purpose of a battery which sections are herein referred to and held as repeated :

And whereas the Second Parties as required by the said section 23 set apart a space approved by the Secretary of State for War which was occupied by the War Department for the purpose aforesaid and the Secretary of State for War also took possession of and occupied (originally under the Defence of the Realm Act and subsequently by tolerance of the Second Parties) certain other areas of ground in connection with the said purpose and a battery and other works were constructed upon the said space and areas which space areas battery and other works continue to be occupied by the First Party :

And whereas the First Party is liable to the Second Parties in certain annual and other payments in respect of such occupancy of such space and areas of ground :

And whereas the space so set apart and occupied under the powers of the said section 23 is delineated and coloured brown upon the plan docquetted and signed as relative hereto and the said other areas of ground are delineated and coloured green upon the said plan :

And whereas the provisions of the said sections 23 and 13 are found to be inadequate or inappropriate for regulating the rights and interests of the said parties in relation to the circumstances which have arisen or are likely to arise should the Second Parties obtain and exercise the powers sought by them under the Order :

And whereas it is expedient that the rights and interests of the said parties in relation to the provision of a suitable battery and relative works for the use of the War Department upon such harbour and dock works as may be constructed by the Second Parties under the power so sought should be regulated in manner hereinafter provided :

And whereas it is also expedient that Parliament's sanction should be obtained to this agreement and that it should be scheduled to and confirmed by the Order :

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A.D. 1925.

— Therefore the parties hereto have agreed and do hereby agree as follows :—

1. Clauses 2 to 14 both inclusive of this agreement shall come into force on the date of the passing of the Act confirming the Order.

2. If and when the Second Parties shall resolve to construct the breakwater or reclamation embankment to the north or east of the embankment referred to in the said section 23 under the authority of the Order or of any other Provisional Order to be made by the Secretary for Scotland and confirmed by Parliament or under the authority of any Act of Parliament the Second Parties may on two month's notice to the First Party take possession of and thereafter occupy the said space and other areas delineated and coloured brown and green respectively upon the said plan as aforesaid. And the First Party shall within such two months remove from the said space coloured brown at the expense of the Second Parties and from the said other areas coloured green free of cost to the Second Parties all guns plant appliances fittings or fixtures not abandoned to the Second Parties declaring that the expense to the Second Parties shall not exceed the actual cash outlay of the First Party with eighteen and a half per centum added and at the expiry of the said period of two months the First Party shall give up possession and occupancy of such space and other areas and thereafter the Second Parties may remove the whole or any part of the works of the battery and other works constructed as aforesaid upon the said space and other areas and also any guns plant appliances fittings or fixtures then remaining thereon which shall be held to be abandoned to the Second Parties as aforesaid. And the First Party's whole rights and interests to or in the said space and other areas and all liability by the First Party to the Second Parties for annual or other payments in respect of the First Party's occupancy (except in respect of occupancy before the expiry of the said two months) shall cease at the date of such expiry.

3. If and when the Second Parties shall have taken possession of the said space and other areas the First Party may at any time intimate to the Second Parties a national emergency and may thereupon proceed to construct at the cost of the Second Parties such temporary defence works as the First Party may see fit in such position upon the harbour or dock works of the Second Parties as the First Party may deem necessary for the purposes of defence provided that the works so to be constructed shall be upon a scale not exceeding the scale of the works at present existing upon the said space and other areas.

4. When such national emergency shall have ceased to exist the First Party shall intimate accordingly to the Second

Parties and thereupon the arrangements hereinbefore conceived in relation to the Second Parties taking possession of the foresaid space and other areas and for the removal therefrom of all guns plant appliances fittings or fixtures and for everything consequential therein provided shall mutatis mutandis apply to the Second Parties resuming possession of the site of the temporary defence works and the removal therefrom of all guns plant appliances fittings and fixtures and to everything consequential as aforesaid. A.D. 1925.

5. Within five years after the date when the Second Parties shall have given the notice stipulated for under the second head of this agreement the Second Parties shall free of all charge to the First Party (except as aftermentioned) set apart to be occupied by the First Party for the purposes hereinafter specified a site for a new battery upon a scale not exceeding the scale of the battery at present existing and of an extent and in a position delineated and coloured red on the said plan and shall construct and provide all such works (including without prejudice to the said generality fittings or fixtures and such extension of the existing telegraph or telephone cables as will be rendered necessary by the change of site to connect the new battery with the existing military electrical communication system but not guns plant or other appliances) as may be required by the First Party to be constructed or provided on in or under the said site for the purposes of such new battery and also adequate connections for water supply and drainage and sanitary works but the Second Parties shall be under no obligation to make provision for connecting the said site with public or other lighting or power supplies outside of the said site.

6. Within the said period of five years the Second Parties shall also set apart to be occupied by the First Party free of all charge (except as aftermentioned) the other sites delineated and coloured blue upon the said plan or other substituted site or sites of like extent as may be agreed between the parties hereto Provided that the First Party shall pay the whole cost of constructing and providing on such other sites or substituted site or sites such works guns plant appliances fittings and fixtures as the First Party may see fit to construct or provide thereon and of constructing and providing electrical connections therewith.

7. The sites so delineated and coloured red and blue respectively upon the said plan or any substituted site or sites agreed on (hereinafter referred to as "the said sites") shall remain the property of and continue to be vested in the Second Parties and the First Party shall pay to the Second Parties a yearly rent at the rate of ten pounds sterling at the term of Whitsunday yearly for the occupancy of the said sites for the year or part of the year preceding from and after the date at which the said sites and

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A.D. 1925. the works to be constructed or provided by the Second Parties upon the site delineated and coloured red on the said plan shall be ready for occupation by the First Party Provided that the said date at which the said sites and others shall be ready as aforesaid shall be ascertained by a certificate to be granted under the hand of the superintendant of the harbour and docks of Leith for the time.

8. The said sites shall be used by the First Party subject to all statutory enactments relative thereto for purposes connected with the Defence of the Realm and for no other purposes and in the exercise of the rights of the First Party under this agreement the First Party will respect so far as is compatible with military requirements the interests of navigation and commerce so as not to interfere unduly therewith.

9. The First Party shall maintain in good order and repair during his whole occupancy thereof the works to be constructed or provided on the said sites except those sections of the reclamation wall or embankment of the Second Parties which will be included in the said sites all to the satisfaction of the Second Parties And whereas the said sections will be part of the sea-defence of the harbour and dock works of the Second Parties Therefore the superintendent of the harbour and docks of Leith or other officer or official of the Second Parties thereto authorised by them shall have access to the said reclamation wall or embankment at all reasonable times for the purposes of inspecting the structure thereof and of carrying out such operations thereon for maintaining or strengthening the said structure as he shall from time to time see fit but if the First Party shall conduct on the said sites any operation by which damage shall be done to the said structure the whole cost of making good such damage as the same shall from time to time be ascertained by a certificate under the hand of the said superintendent containing such details of the cost as may be reasonably required by the First Party shall be paid by the First Party to the Second Parties.

10. The rights of the First Party under this agreement shall remain in force for a period of nine hundred and ninety-nine years from the last date hereof unless sooner abandoned and the First Party may abandon the said rights and terminate this agreement at any time on six months' notice but without prejudice to the subsistence of the said agreement for the purpose of either party's enforcing against the other implement of obligations and discharge of liabilities incurred thereunder prior to the expiry of the said six months.

11. The First Party shall not encroach upon or lay down materials upon any ground or roads or paths belonging to the Second Parties adjoining the said sites or obstruct the use of the same by any means whatever the full and unlimited use of the

said ground and roads or paths being specially reserved to the Second Parties with full power to deal therewith as they may think proper but the Second Parties shall warrant to the First Party during his occupancy under this agreement full and sufficient access by the said roads or paths or other sufficient roads or paths to each of the said sites the Second Parties being always entitled to make such alterations as they may see fit upon the said roads and paths provided that they shall supply to the First Party full and sufficient access to the said sites for the purposes aforesaid Provided that the main road or access to the site of the said battery shall be not less than ten feet wide throughout its length. A.D. 1925

12. The Second Parties shall at the expense of the First Party make such alterations upon any road path or access to the said sites as the First Party may declare to the Second Parties to be necessary for military purposes.

13. The Second Parties shall afford to the First Party at his cost all reasonable facilities for establishing such telephonic telegraphic and power cable communication as may be required by the First Party.

14. Every notice to be given by the First Party under this agreement shall be given in writing under the hand of the Chief Engineer Scottish Command or other person duly authorised by the First Party and all notice to be given under this agreement by the Second Parties shall be given in writing under the hand of their clerk or other official duly authorised by them.

15. The plan hereinbefore referred to shall be held as sufficiently identified by being docquetted as relative to this agreement and by such docquet being signed by the Director of Fortification and Works on behalf of the First Party and by the chairman presiding at the meeting of the Second Parties at which this agreement shall be executed by them on their behalf.

16. This agreement is made subject to such alterations as may be made thereon during the progress of the Order but if any material alteration be so made it shall be competent to either Party to withdraw the same provided that in the event of the agreement being withdrawn by the Second Parties Section 11 of the Order shall also be withdrawn.

17. The whole expenses of this agreement shall be borne by the Second Parties.

In witness whereof these presents consisting of this and the six preceding pages are executed in duplicate as follows videlicet They are subscribed by Sir Laming Worthington-Evans Baronet G.B.E. M.P. His Majesty's Principal Secretary of State for the War Department at London on the fourth day

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Docks Order Confirmation Act, 1925.

A.D. 1925. of May Nineteen hundred and twenty-five before these witnesses
 — Austin Earl civil servant Twenty-four Mallord Street Chelsea
 London and Eric Bourne Bentinck Speed civil servant Two
 Uxbridge Road Kingston-upon-Thames Surrey and they are
 sealed with the Corporate Seal of the Commissioners for the
 Harbour and Docks of Leith and are signed at and in presence
 of a meeting of the said Commissioners as follows videlicet
 On each page by Patrick James Pringle merchant Leith one
 of the said Commissioners the chairman of the said meeting and
 on this page by William Alexander Whitelaw shipowner Hugh
 Rose merchant James Harper Paterson merchant and Sir
 James Wishart Thomson K.B.E. shipowner all of Leith being
 four others of the said Commissioners present at the said meeting
 all at Leith on the eighth day of the month and year last
 mentioned before these witnesses Alexander Charles Sutherland
 and James Taylor both clerks in the offices of the said Commis-
 sioners at Leith.

AUSTIN EARL	} L. WORTHINGTON-EVANS.
Witness.	
E. B. B. SPEED	}
Witness.	
ALEX. C. SUTHER-	} PATRICK J. PRINGLE Chairman. WM. A. WHITELOW Commissioner. HUGH ROSE Commissioner. J. H. PATERSON Commissioner. J. WISHART THOMSON Commissioner.
LAND Witness.	
JAMES TAYLOR	
Witness.	
(L.S.)	

THIRD SCHEDULE.

Referred to in the section of this Order of which the
 marginal note is "Incorporation of certain sections of
 Act of 1913."

Marginal note of Section.	No. of Section.
ACT OF 1913.	
For protection of Water of Leith Purification and Sewerage Commissioners- - - - -	8
For protection of Leith Corporation - - - - -	9
For protection of Postmaster-General - - - - -	12
Power to deviate - - - - -	15
Power to make subsidiary works - - - - -	18
Correction of errors in deposited plans and book of reference - - - - -	20

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Marginal note of Section.	No. of Section.	A.D. 1925.
ACT OF 1913.		
Works below high-water mark to be subject to approval of Board of Trade - - - - -	21	
Lights on works during construction - - - - -	22	
Permanent lights on works - - - - -	23	
Life-buoys to be kept - - - - -	24	
Certain fishing vessels under stress of weather exempt from rates - - - - -	25	
Survey of works by Board of Trade - - - - -	26	
Abatement of work abandoned or decayed - - - - -	27	
Provision against danger to navigation - - - - -	28	
Compensation for damage to salmon fishings - - - - -	29	
Reserving surface of quays - - - - -	56	
Saving obligations as to streets and exemption from taxation - - - - -	63	
Nothing to exempt harbour and docks from provisions of Merchant Shipping Acts - - - - -	67	

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